

M2.2 Rules of Evidence – Mandatory and Discretionary Exclusions RASE

Learner Instructions

You are allocated a contested hearing for an offence of recklessly causing injury in the context of family violence.

The complainant in the matter, Angelica SCOTT, provided a statement to police at the time of the incident. The statement describes allegations that her husband, Gustav SCOTT, has pushed her to the ground, during a heated argument about money. As a result of falling to the ground Angelica fractured her wrist. Police were called after a neighbour heard the pair arguing and arrived at the address only 10 minutes after this incident is said to have occurred. Angelica stated that both she and Gustav had been drinking before the incident but they were not drunk.

A recorded interview was conducted with Gustav after he had been arrested. Gustav accepted that they had had a heated argument but denied pushing Angelica. He stated that she had lunged at him and then fallen over because she was drunk.

The informant, who took the statement from Angelica, provided a statement about attending the incident. She has stated that both parties had appeared to be alcohol affected, but not significantly so. The informant is available to give evidence in the hearing.

There are no other witnesses to call. The neighbour has not been summonsed to give evidence as it is not in dispute that an argument has occurred and the neighbour could provide no further relevant evidence.

During the hearing you call Angelica to give evidence, however Angelica has objected, pursuant to s 18 of the *Evidence Act 2008*, to giving evidence against the accused.

The Magistrate upheld the objection and you have attempted to tender Angelica's statement pursuant to s 65 of the *Evidence Act 2008*, due to Angelica now being an unavailable witness for the prosecution.

Counsel for the accused initially objected that the statement did not meet the criteria of s 65; however the Magistrate accepted your submission that it was admissible under that section.

Defence now make the following objection:

"If Your Honour is minded to admit the statement pursuant to s 65 I submit that Your Honour should exclude the statement pursuant to s 137 of the Evidence Act 2008. My submission is that the prejudice to the accused is not outweighed by the probative value of the statement.

The probative value of the statement is low. The complainant has acknowledged that she was drinking and my client instructs that she was not pushed over; she fell over, because she was drunk.

Because she was drinking at the time, the statement is not reliable, so therefore the probative value is low.

The prejudice to my client is very high. My client is prejudiced by the fact that the complainant will not be cross-examined so I am unable to explore the issue of her being drunk as well as any credibility issues.

It is for those reasons that Your Honour should exclude this evidence."

The Magistrate asks for your submission in relation to s 137.

Prepare a written submission in response (IRAC format preferred).